

DEGREE DRISHTI

POLICY ON PREVENTION OF SEXUAL HARASSMENT

Article 1: THE POLICY STATEMENT

Degree Drishti is committed to promoting a work environment that encourages equality of opportunity and professional growth for all its employees, which is free of any intimidation, oppression, and exploitation in its work culture. Degree Drishti is committed to ensuring that every individual associated with us, be it an employee, client, or visitor, is treated with dignity and respect and is afforded equitable treatment.

In keeping with the above philosophy and commitment, Degree Drishti professes 'zero-tolerance' for any form of sexual harassment in the workplace and in that regard addresses all incidents of the same seriously and promptly. Any person found to have sexually harassed another will face disciplinary action as according to the Company's POSH Policy (hereinafter referred to as the "Degree Drishti POSH Policy" or "DDP"), which may even include dismissal from employment. Further, all complaints of sexual harassment will be treated with respect and utmost confidence.

Article 2: PREAMBLE AND OBJECTIVES OF THE POLICY

Preamble and Objectives of the Policy

DDP has been framed in accordance with the legal requirements of Indian laws and in particular "The Sexual Harassment of Women at Workplace (Prevention, Prohibition & Redressal) Act, 2013 (hereinafter referred to as "POSH") and the Supreme Court directives of the landmark judgement in the Vishaka case of 1997.

Scope

Degree Drishti recognizes that anyone can be a victim of sexual harassment, regardless of their gender and the gender of the harasser and that incidences of sexual harassment may also occur between people of the same sex. Hence, such acts of harassment need to be prevented irrespective, and gender equality in the workplace must be ensured and enforced. It is emphasized that, while the DDP in general applies to all genders and categories of employees of the Company and that the Company takes a stern view of any form of sexual harassment of its employees, the DDP has been particularly framed for its employees, including permanent management, temporary employees on contract basis, and trainees at its workplace or at client sites.

Given that Degree Drishti also acknowledges that sexual harassment may also be a darker manifestation of power, authority, and unequal relationships within the workplace, DDP voices the Company's sentiment that no form of sexual harassment of its employees by its own employees, clients, suppliers, or any other business associates or third parties on its sites, shall be tolerated by the Company. Degree Drishti, therefore, reiterates its absolute responsibility to the well-being of its workers, in case of occurrence of harassment during work hours at the workplace, and to that end assures swift and prompt redressal to victims of such harassment. The Degree Drishti POSH Policy shall be applicable to Degree Drishti employees, including permanent management.

Objective

The Act recognizes that sexual harassment of any employee that renders his/her involvement in such a workplace unsafe and affects his/her right to work with dignity is a human rights violation and an offence and violates his/her fundamental rights to live with dignity and carry on any profession, trade, or business in a threat-free environment. The principal object and purpose of DDP are the following:

- To prevent and prohibit all acts of sexual harassment;
- To redress and resolve grievances speedily by providing relief to victims and just disciplinary action to the offender of sexual harassment;
- To ensure and maintain a safe work environment for employees in the organization;
- To discourage and prohibit gender discrimination at the workplace;
- To recognize the constitutional rights of employees as human beings and citizens;
- To create a society free of sexual offences and abuse through awareness and understanding of this subject.

Article 3: KEY DEFINITIONS & EXPLANATIONS

The following terms need to be clearly understood in the context of the subject, its redressal, and the roles and responsibilities of the Company, the victim, and perpetrator:

Sexual Harassment – "Harassment of an employee consisting of any unwelcome sexually determined behavior, whether directly, indirectly, by any person in charge of the management or a co-employee either individually or in association with other persons to exploit the sexuality of co-employee to harass his/her in manner which prevents or impairs his/her full utilization of benefits, facilities or opportunities or any other behavior which is generally considered to be derogatory."

Understanding Sexual Harassment

- a) All acts of harassment do not come under the umbrella of 'sexual harassment'. Harassment is quite commonplace in the workplace and refers generally to the autocratic and arrogant behavior of designated authorities or colleagues, amounting to interpersonal mistreatment in the workplace.
- b) For a conduct to qualify as an offensive act of sexual harassment, the complainant must be able to show that the attention and advances were unwanted and that the intimacies were of the forced, sexual kind, or that derogatory, sexually suggestive comments were made either verbally or in writing, creating an unpleasant, adverse work environment that threatens a man's or a woman's employment and right to livelihood.
- c) Harassment complained of, therefore, must be based upon sex and should amount to sexual coercion for victim's sexual favours in return for security of job.

Constitution of Sexual Harassment

Following are the few actions which constitute an act of sexual harassment. Please be noted that these are just a few examples and it shall not be considered as an exhaustive list.

- a) Conduct of a sexual nature that is unsolicited, unwelcome and;

- b) Sexual Conduct, which outrages a person's modesty or robs him/her of their dignity or makes them feel offended, humiliated and/or intimidates them.
- c) Sexual conduct that creates thereby a hostile, intimidating or humiliating work environment for the aggrieved/victim in the organization.
- d) Sexually oriented conduct, that endangers the victim's job, or negatively affects the victim's job performance or that which undermines the victim's personal dignity and manifests itself either physically or psychologically. Situations where a person is asked to engage in sexual activity as a condition of that person's employment;
- e) One or more incidents and actions that amount to 'harassment' of the physical, verbal and non-verbal kind.

Examples of Sexual Conduct

Conduct constituting sexually determined behavior that causes discomfort and/or humiliates a person include any one or more of the following unwelcome acts, but are not limited to:

Physical Conduct

- i. Unwelcome physical contact and advances including touching, patting, pinching, stroking, deliberate brushing of body, kissing, hugging, fondling, or inappropriate touching;
- ii. Sexually-suggestive gestures like whistling, leering, persistent staring/watching, following a person making her uncomfortable;
- iii. Physical violence, sexual assault, physical confinement against one's will or any such act likely to intrude upon one's privacy;
- iv. Demand or request for sexual favors; use of job-related threats or rewards to solicit sexual favors.

Verbal Conduct

- i. Sexually colored remarks about a person's clothing or body, appearance, age, private life;
- ii. Sexually explicit text messages (phone, mail, or email, SMS, MMS), comments, stories, and jokes;
- iii. Repeated and unwanted social invitations for dates or physical intimacy during off-duty hours or continued expressions of sexual interest against a person's wishes;
- iv. Gender derogatory comments, jokes, insults based on the sex of the worker, condescending or paternalistic remarks;
- v. Sarcastic comments like eve teasing, innuendos, taunts, etc.

Non-verbal Conduct

- i. Displaying of sexually explicit content like pornographic or suggestive material, sexually demeaning or offensive pictures, cartoons or other materials through email, SMS, MMS etc. targeted to draw the attention of an employee.
- ii. Sexual overtures like giving gifts etc. or leaving objects that are sexually suggestive like explicit signs and gestures.

Article 4: COMPLAINT MECHANISM

Degree Drishti's Policy, in keeping with the POSH Act, provides for a complaint and redressal mechanism in the organization to specifically deal with complaints of sexual harassment, to enable prompt and efficient responses to the aggrieved persons and to ensure that complaints are investigated fairly and properly and to the satisfaction of the complainant. The individuals who are entrusted to deal with the complaints of sexual harassment are trained specifically on the law, issues, and nuances of this subject, its nature, and the course it can travel.

It is observed generally that often complainants desire to resolve the matter without bringing it out in the open through formal procedures and are happy with an informal resolution. In contrast, others may want and opt for more formal measures. In addition, informal resolution mechanisms may be inappropriate where the allegation is of a far serious nature or where the harasser is also the victim's supervisor.

Internal Committee (IC): POSH Act mandates that companies or offices or establishments or branches employing 10 or more employees must set up an appropriate complaint mechanism in the form of the IC to hear, investigate, and redress grievances pertaining to sexual harassment and to determine whether or not such conduct actually constitutes an offence under the law or is a breach of the Company service rules. Accordingly, Degree Drishti has set up its IC for all its offices in India, as may be referred to in Annexure II, for the time-bound redressal of complaints made by victims of sexual harassment. The constitution, including any reconstitution, of the Company's IC will be informed to all the employees through email and shall be put up on the notice board of the Company or on the HRMS portal of the Company for access to everyone.

Article 5: COMPLAINT RESOLUTION & REDRESSAL

Complaints related to sexual harassment will be received, addressed, and redressed in the following manner:

Informal Resolution Options

- A. If the sufferer/target is not keen to pursue his/her complaint formally and would like to resolve the same informally without bringing it to the notice of others, it is recommended that he/she forthwith communicate his/her disapproval and objections to the accused harasser, with a request to stop the offending behavior and to conduct himself/herself appropriately.
- B. It is also advised that he/she reach out to his/her reporting manager/HR to seek their guidance and support in the resolution of his/her problem and grievances, as well as inform the Supervisor of any resolution in the pending matter. The IC, if requested by the aggrieved person, will facilitate discussions between both parties to achieve an informal resolution and conciliation. In any case, the IC will record the details of the complaint or its resolution for reference and appropriate action.
- C. Resolution through discussions and conciliation should happen speedily within 2 (two) weeks of receipt of complaint. In case the harassment continues, the complainant must approach the IC to resolve the matter to the complainant's satisfaction.

Formal/Written Complaints

Any employee who is allegedly being harassed and wishes to lodge a formal complaint or has exhausted informal options may submit a complaint to hr@degreedrishti.com. The complaint must be:

- A. In writing and in the prescribed complaint form (Annexure I).
- B. In the form of a letter sent in a sealed envelope or via email.

- C. Made within three months (90 days) from the date of the alleged incident.
- D. The IC may grant an extension of an additional three months to lodge the complaint, if deemed appropriate.
 - In cases where the aggrieved person is physically or mentally impaired or has passed away and is unable to file the complaint, a legal heir, co-worker, relative, friend, or another person with knowledge of the incident is permitted to complain on their behalf.
 - Written complaints must be made in six copies along with supporting documents and names and addresses of witnesses, if any.
 - The IC shall begin its inquiry into the complaint within one week (07 days) from receipt of the original complaint/closure of conciliation or a repeat complaint and will conduct a thorough and appropriate investigation. Upon completion, the IC shall submit its conclusions in the form of an Inquiry Report.
 - The Company must act on the recommendations of the IC within 60 (sixty) days from receipt of the Inquiry Report. In cases where the IC determines that the offence complained of does not constitute an act of sexual harassment under POSH, the Company shall take appropriate action against the harasser based on the IC's recommendations.
 - Anyone found to have sexually harassed another person may be liable to actions such as warnings, reprimands, adverse performance evaluations, wage reductions, transfers, demotions, suspensions, or dismissal, and may also be required to undergo counseling for any identified problems.

Interim Relief:

The law allows the IC to grant interim reliefs to the complainant at their written request during the pendency of an inquiry against sexual harassment, which includes:

- A. Transferring the complainant or respondent to another workplace.
- B. Granting leave to the aggrieved person for up to three months, in addition to their entitled leave.
- C. Restraining the accused from reporting to work or writing any confidential reports about the complainant.
- D. Restraining the respondent from supervising any academic activities of the aggrieved person.

False or Malicious Complaints:

If complaints are found to be false, malicious, or if any witness has provided false evidence or forged documents, the IC may recommend that the Company take appropriate action against the witness. The decision of the Company in this regard shall be final.

Article 6: CONFIDENTIALITY

Non-Disclosure:

Employees are assured that the Company will handle all complaints of sexual harassment responsibly and with utmost confidentiality. The identity of the complainant, respondent, witnesses, statements, and evidence obtained during the inquiry process, along with the IC's recommendations, will be treated as confidential and will not be published or made known to the public or media, except as required by law.

Access to Reports & Documents:

The Company assures that all records of complaints related to sexual harassment will be kept confidential, including meeting contents, investigation results, and other relevant materials, except where disclosure is required under disciplinary or remedial procedures.

Protection for Complainants/Victims:

The Company is committed to ensuring that no employee who raises a harassment concern faces any form of reprisal, whether verbal or written, from the accused, co-workers, or management. Any such reprisal brought to the Company's attention will be subject to strict disciplinary action.

Article 7: APPEALS

Complainants and respondents dissatisfied with the IC's decision/recommendations may appeal within 90 days to the POSH Appellate Authority. However, appeals can only be made regarding specific recommendations such as:

- No sanctions or sanctions for misconduct or wage deductions.
- False/malicious complaints or false witnesses or forged documents.
- Penalties for contravening non-disclosure guidelines.
- Non-implementation of recommendations.

Article 8: OUTSIDE COMPLAINT MECHANISMS

An individual subjected to sexual harassment can also make a complaint outside of the company through legal options available under Indian law, such as employment tribunals, ombudspersons, or filing an FIR.

Article 9: RESPONSIBILITIES TO PREVENT SEXUAL HARASSMENT

Company:

The Company is responsible for maintaining a workplace free of sexual harassment, as outlined by:

- 1. Threat-Free Environment:** Ensuring that sexual harassment is not tolerated and that complaints are taken seriously.
- 2. Due Process:** Ensuring due process is followed in handling complaints.
- 3. Annual Report:** Preparing and submitting an annual report on the number of sexual harassment cases and actions taken to the District Officer.
- 4. Records of Proceedings:** Meticulously maintaining records of all complaints and proceedings.
- 5. Facilities:** Providing all required facilities, assistance, and information to the IC, complainants, and accused parties.
- 6. Assistance:** Providing assistance to women seeking action under IPC or other laws.
- 7. Information Dissemination:** Conducting regular training and awareness programs for employees and management.

Employees:

Employees are also responsible for maintaining a harassment-free environment by ensuring their conduct does not violate the DDP and by supporting victims in rejecting harassment.

ANNEXURE I – FORMAT OF COMPLAINT FORM

To file a written complaint, please email to HR with the details of the complaint hr@degreedrishti.com.

ANNEXURE II – ICC COMPOSITION

Email: hr@degreedrishti.com

Zones

North Zone

WFO Team - Sweta Singh, HR Associate

Degree Drishti reserves the right to modify or terminate this policy in whole or in parts at any time without prior notice.

